

PASSED

CHICKASAW TRIBAL LEGISLATURE

**Permanent Resolution Number 16-020
Amending Title 8, Chapter 10
of the Code of the Chickasaw Nation
Disclosure of Campaign Contributions/Expenditures**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Legislature recognizes the need for disclosure and reporting of campaign finance issues.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby amends Title 8, Chapter 10, of the Code of the Chickasaw Nation with any necessary renumbering as shown, deletions shown as stricken and additions shown with shading, to wit:

**CHAPTER 10
CAMPAIGN CONTRIBUTIONS AND EXPENDITURES**

Section 8-1000	Definitions.
Section 8-1001	Disclosure of Campaign Contributions/Expenditures.
Section 8-1002	Disclosure Statements.
Section 8-1003	Duty to Report.
Section 8-1004	Penalties.

SECTION 8-1000 DEFINITIONS.

1. Declaration of Candidacy: shall mean, for the purpose of this Chapter, announcing candidacy through a publication of general circulation, by news media announcement, or upon commencement of fundraising activities, whichever occurs first.

SECTION 8-1001 DISCLOSURE OF CAMPAIGN CONTRIBUTIONS/EXPENDITURES.

A. All candidates for elective office shall file a statement disclosing any and all campaign contributions, including the following information:

- 1.(1) The source and amount of all monetary contributions to their campaign.
- (2) ~~The name and number of hours for volunteers, excluding immediate family, who donate their time, expertise and or services for the benefit of the candidate or elected official and the estimated value of their time at fair market value or their salary.~~

2.(3) The source and value or cost of any "in kind" contributions. "In kind" is defined as any thing or service donated of any value.

3.(4) Any single contributor (excluding candidates own personal funds), whether an individual, a business or corporation is limited to a maximum monetary contribution of \$1,000.00. Any contributions in excess of this limit must be declined or returned immediately.

B. This requirement of disclosure will be effective as of the date passed and will require disclosure for all future elections and any contributions made therefor.

1.(1) For the first election year that this law is implemented, all candidates must disclose cash on hand at the beginning of the reporting period (i.e. upon declaration of candidacy) and make a good faith effort to disclose all relevant sources.

2.(2) For contributions made after passage, full disclosure requirements of all contributions will be required as specified throughout this section.

SECTION 8-1002 DISCLOSURE STATEMENTS.

C. Campaign Contribution Disclosure Statements will be filed along with an affidavit by the candidate swearing to its accuracy.

SECTION 8-1003 DUTY TO REPORT.

D. Campaign Contribution Disclosure Statements will be filed with the Election Secretary/Tribal Registrar upon declaration of candidacy and updates will be filed at the end of every month until the election for said candidate is completed. It shall be filed on a form provided by the Election Commission which will reflect the above information and be made available for public inspection and copying if requested during regular business hours.

SECTION 8-1004 PENALTIES.

E. Failure to file reports within five days after the end of the month or willfully filing inaccurate reports can be grounds for disqualification by and at the discretion of the Election Commission.

Executed in special session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on May 21, 1999, by a vote of 13 ayes, 0 nays, 0 abstentions.

Robert Walton
Chairperson
Chickasaw Tribal Legislature

Judy Booth Porter
Secretary
Chickasaw Tribal Legislature

Concur: Bill Anoatubby Date: MAY 26 1999
Bill Anoatubby, Governor
The Chickasaw Nation

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Explanation: This resolution amends Title 8, Chapter 10, of the Code of the Chickasaw Nation, by renumbering, deleting some of the existing text and inserting additional language. The deleted text is stricken throughout the section and the added text is shaded.

Requested By: Bill Anoatubby, Governor

Presented By: Lisa Shephard, Chairman
Election Reform Committee